

## CHAPTER 14.

An Act to make further provision for the temporary modification of the charges which may be made in respect of and the obligations affecting Tramway Undertakings. [20th May 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment  
of s. 1 of  
8 & 9 Geo. 5.  
c. 34. in its  
application to  
tramways.

1.—(1) The limitations contained in the proviso to sub-section (1) of section one of the Statutory Undertakings (Temporary Increase of Charges) Act, 1918 (hereinafter referred to as the principal Act), shall not apply in the case of orders made after the passing of this Act by the Minister of Transport in relation to tramway undertakings, but in lieu thereof the following limitations shall apply :—

- (a) Where the undertakers are a local authority, no modification in the statutory provisions regulating the charges to be made by the undertakers shall be authorised which is more than sufficient, so far as can be estimated, to enable the undertaking to be carried on without loss; and
- (b) In any other case, no such modification shall be authorised which is more than sufficient to provide, with due care and management, for interest on loan capital and for a reasonable return on share capital, regard being had to the pre-war financial condition of the company, and its prospective development.

(2) An order authorising any increase in the statutory maximum charges applicable to a tramway undertaking may attach such conditions thereto as the Minister may think proper, and may modify any statutory provisions, and the provisions of any agreement, whether or not confirmed by an Act or order having the force of an Act, which impose obligations on the undertakers as to the frequency of any tramway service.

(3) Before making an order in pursuance of the powers conferred by the principal Act as amended by this Act the Minister shall refer the matter to the advisory committee hereinafter constituted for their consideration and report :

Provided that, if in the case of any tramway undertaking it appears to the Minister that there is ground for making an order and that the case is one of urgency, he may, without any such reference and without any such notices as are required by the principal Act, make an interim order increasing the statutory maximum charges by such amount, not exceeding one hundred per cent., and subject to such conditions, as he thinks proper;

but an interim order shall not remain in force more than six months, and, where any interim order is made, the Minister shall forthwith refer the matter to the advisory committee.

(4) The charges authorised by any order made under the principal Act as amended by this Act may be charged notwithstanding any statutory provisions or any agreement whether or not confirmed by an Act or order having the force of an Act.

(5) If at any time it appears to the Minister of Transport that, owing to changes in the cost of labour or materials or other circumstances affecting a tramway undertaking with respect to which an order has been made, the powers of charging effected by the order are insufficient or excessive for the purposes aforesaid, the Minister may, and, if representations to that effect are made to him by the undertakers or by the local authority of any district served by the tramway, or in case where the local authority are the undertakers by twenty ratepayers in the district, he shall refer the matter to the advisory committee hereinafter constituted, and may, after considering any report of the committee, make an order revising the powers of charging so authorised as aforesaid; so, however, that revised maximum charges shall not in any case be less than the statutory maximum charges applicable to the undertaking.

2.—(1) For the purpose of giving advice and assistance to the Minister of Transport with respect to the making of orders in relation to tramway undertakings and for safeguarding the interests of users of tramways, a committee shall be constituted consisting of the Light Railway Commissioners and such members of the panel set up under section twenty-three of the Ministry of Transport Act, 1919, as the Ministry may appoint for the purpose, and such member as the Minister may appoint shall be chairman of the committee, and the committee, if so authorised by the Minister of Transport, may delegate to sub-committees thereof any of its powers and duties under this Act. Advisory committee.  
9 & 10 Geo. 5.  
c. 50.

(2) The committee, before reporting or advising on any matters referred to them under this Act shall, unless in their discretion they consider it unnecessary or undesirable to do so, give such public notice as they think best adapted for informing persons affected of the date when and the place where they will inquire into the matter, and any person affected may make representations to the committee, and, unless in their discretion the committee consider it unnecessary, shall be heard at such inquiry, and, if the committee in their discretion think fit, the whole or any part of the proceedings at such inquiry may be open to the public :

Provided that, for the purpose of this provision, the council of any city, borough, burgh, county, or district shall be deemed to be persons affected in any case where such council or any

persons represented by them may be affected by any proposed order.

(3) The committee shall hear such witnesses and call for such documents and accounts as they think fit, and shall have power to take evidence on oath, and for that purpose any member of the committee may administer oaths.

Supplemental provisions.

3.—(1) The Minister of Transport may, for the purposes of this Act, employ such accountants as he may think fit, and it shall be the duty of tramway undertakers to furnish to any such accountant such information and to produce to him such accounts and books as he may require for the purpose of reporting to the Minister or the Advisory Committee as to the financial position of the undertaking.

(2) The costs incurred by the Minister in connection with any application for an order under this Act, including the remuneration of any such accountant, shall be paid by the undertakers, and the Minister of Transport may certify the amount of the costs incurred, and any sum so certified and directed by the Minister to be paid by the undertakers shall be a debt to the Crown from those undertakers.

(3) For determining the cost of labour for the purposes of this Act, the Minister of Labour shall, at the request of the Minister of Transport, certify what are the rates of wages which have been fixed either by the National Joint Industrial Council for the tramway industry or by an award under the

9 & 10 Geo. 5. Industrial Courts Act, 1919.  
c. 69.

(4) For the purposes of this Act, statutory maximum charges shall not include any charges authorised by an order under the principal Act or this Act.

(5) For the purposes of this Act, the word "tramway" shall include light railways constructed wholly or mainly on public roads, and, where a tramway undertaking is leased to or worked by a company or person other than the owners thereof, "undertakers" shall, for the purposes of the principal Act and this Act, include that company or person, and, where a tramway undertaking is leased to or worked by a company or person other than the owners thereof, "undertakers" shall, for the purposes of the principal Act and this Act, include that company or person.

Short title, construction, and duration.

4.—(1) This Act may be cited as the Tramways (Temporary Increase of Charges) Act, 1920, and shall be construed as one with the principal Act.

(2) Notwithstanding anything in the principal Act, that Act as amended by this Act shall, in relation to tramway undertakings, have effect until the fifteenth day of February nineteen hundred and twenty-three.